



Southeastern Pennsylvania Transportation Authority
Safety • Service • Continuous Improvement

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December 12, 2001

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2001 DEC 13 AM 10:04
SECRETARY'S BUREAU

Mr. James J. McNulty, Secretary
Pennsylvania Public Utility Commission
400 North Street
Commonwealth Keystone Building
P.O. Box 3265
Harrisburg, PA 17105-3265

**IN RE: Application of Southeastern Pennsylvania
Transportation Authority ("SEPTA") for approval of
the alteration of the crossing where North Valley
Road (AAR #531 280 V; S.R. #1005) crosses above the
grade of the tracks of the National Railroad
Passenger Corporation ("Amtrak"), by the installation
of closed-circuit television equipment and conduits
associated with the Paoli Railroad Station located in
Tredyffrin Township, Chester County, Pennsylvania
P.U.C. Docket No.: A-00117623
SEPTA Corporate File No.: 002258**

Dear Secretary McNulty:

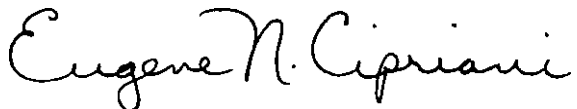
Enclosed for filing please find the original and ten (10)
copies of SEPTA's petition to Modify a Secretarial Letter in the above-
captioned matter.

Kindly time stamp and return the extra copy of this Petition in
the enclosed postage prepaid envelope addressed to me.

Mr. James J. McNulty, Secretary
Pennsylvania Public Utility Commission
December 12, 2001
Page -2-

I hereby certify that a copy of SEPTA's Petition has been sent to all parties or record, as indicated on the Certificate of Service.

Respectfully yours,



Eugene N. Cipriani
Assistant Deputy Counsel

ENC/lr

Enclosure

cc: Nicholas J. Staffieri, Esquire
C. Neil Petersen, Esquire
Charles R. Campbell, P.E.
Robert J. Tangi
James E. Wain

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BEFORE THE
PENNSYLVANIA PUBLIC UTILITY COMMISSION

Application of Southeastern
Pennsylvania Transportation
Authority ("SEPTA") for approval
of the alteration of the crossing
where North Valley Road (AAR
#531 280 V; S.R. 1005) crosses
above the grade of the tracks of
the National Railroad Passenger
Corporation ("Amtrak"), by the
Installation of Closed Circuit
Television Equipment and
Conduits Associated with the
Paoli Railroad Station located in
Tredyfrin Township, Chester
County, Pennsylvania

Application
Docket No.: A-00117623

DOCKETED

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PETITION TO MODIFY SECRETARIAL LETTER OF
THE PUBLIC UTILITY COMMISSION DATED
May 3, 2001

AND NOW, comes the Southeastern Pennsylvania Transportation Authority (SEPTA), by and through its counsel, Eugene N. Cipriani, Assistant Deputy Counsel, and offers the following in support of its Petition to Modify the Above-Captioned Secretarial Letter:

1. The name and address of your Petitioner is:

Southeastern Pennsylvania Transportation Authority
1234 Market Street
Philadelphia, PA 19107-3780

2. The name and address of Counsel for the Petitioner is:

Eugene N. Cipriani, Esquire
Assistant Deputy Counsel
Legal Department
Southeastern Pennsylvania Transportation Authority
1234 Market Street, 5th Floor
Philadelphia, PA 19107-3780

3. By Secretarial Letter dated May 3, 2001, SEPTA was ordered to complete the project on or before December 31, 2001. A copy of that Secretarial Letter is included as **Attachment 1**.

4. Because the scope of the project increased beyond that which is requested in the original application, this project could not be started in calendar year 2001. It is now currently scheduled for construction from July 2002 to December 2003. Therefore, SEPTA will be unable to complete the project until on or before December 2003. In the event construction slips for any reason, it is suggested that March 31, 2004 would be a more realistic date to contemplate the completion of construction.

5. SEPTA respectfully requests that paragraph 5 of the May 3, 2001 Secretarial Letter be modified as follows (modification is underlined):

5. The alteration of the crossing be completed on or before **March 31, 2004**, and that on or before said date, Southeastern Pennsylvania Transportation Authority report the date of actual completion of the work to this Commission; and certify to this Commission that the work has been satisfactorily completed in accordance with the approved plans and this Secretarial letter.

WHEREFORE, SEPTA respectfully requests that this Honorable Commission modify its Secretarial Letter entered May 3, 2001, consistent with this Petition for Modification.

Respectfully Submitted,

Dated: December 12, 2001


Nicholas J. Staffieri
General Counsel
C. Neil Petersen
Deputy Counsel, Corporate
Eugene N. Cipriani
Assistant Deputy Counsel
1234 Market Street
5th Floor
Philadelphia, PA 19107-3780
Attorneys for Southeastern
Pennsylvania Transportation
Authority ("SEPTA")

Application of Southeastern Pennsylvania Transportation Authority ("SEPTA") for approval of the alteration of the crossing where North Valley Road (AAR #531 280 V; S.R. 1005) crosses above the grade of the tracks of the National Railroad Passenger Corporation ("Amtrak"), by the Installation of Closed Circuit Television Equipment and Conduits Associated with the Paoli Railroad Station located in Treddyfrin Township, Chester County, Pennsylvania

Application of Southeastern Pennsylvania Transportation Authority ("SEPTA") for approval of the alteration of the crossing where North Valley Road (AAR #531 280 V; S.R. 1005) crosses above the grade of the tracks of the National Railroad Passenger Corporation ("Amtrak"), by the Installation of Closed Circuit Television Equipment and Conduits Associated with the Paoli Railroad Station located in Treddyfrin Township, Chester County, Pennsylvania

Charles R. Campbell, P.E., being duly sworn according to law, deposes and says that he is a Senior Project Manager for Electrical Facilities in the Capital Design & Construction ("CDC") Division of the Southeastern Pennsylvania Transportation Authority; that he is authorized to and does make this Affidavit for it; and that the facts set forth in the foregoing Petition to Modify a Secretarial Letter are true and correct to the best of his knowledge, information and belief, and he expects the said Southeastern Pennsylvania Transportation Authority to be able to prove the same at any hearing hereof.

Sworn and subscribed before me
this 12th day of December, 2001

NOTARIAL SEAL
LORETTA ROSATO, Notary Public
City of Philadelphia, Phila. County
My Commission Expires Jan. 5, 2004

**BEFORE THE
PENNSYLVANIA PUBLIC UTILITY COMMISSION**

**Application of Southeastern
Pennsylvania Transportation
Authority ("SEPTA") for approval
of the alteration of the crossing
where North Valley Road (AAR
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Tredyfrin Township, Chester
County, Pennsylvania**

**Application
Docket No.: A-00117623**

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CERTIFICATE OF SERVICE

I hereby certify that I have this day served a true copy of the foregoing
Petition to Modify a Secretarial Letter upon parties of record in this proceeding in
accordance with the requirements of §1.54 (relating to service by a participant).

David A. Oliver, P.E.
Pennsylvania Public Utility Commission
P.O. Box 3265
Harrisburg, PA 17105-3265

National Railroad Passenger
Corporation
Law Department
c/o Dennis M. Moore, Esq.
60 Massachusetts Ave., N.E.
Washington, D.C. 20002

Norfolk Southern Corporation
c/o Randal S. Noe, Esq.
Three Commercial Place
Norfolk, VA 23510-9207

National Railroad Passenger
Corporation
c/o Irfan Oneu
Engineering Division
30th Street Station
30th & Market Sts, 4th Floor South
Philadelphia, PA 19104

Norfolk Southern Corporation
c/o Gary Woods, P.E.
Senior Vice President-Engineering
99 Spring Street, S.W.
Atlanta, Georgia 30303

Mr. Leonard Nardone
Commonwealth of Pennsylvania
Department of Transportation
7000 Geerdes Boulevard
King of Prussia, PA 19406

The Board of Commissioners
of Chester County
c/o John S. Halsted, Solicitor
Courthouse
West Chester, PA 19280

Gina M. D'Alfonso, Esquire
Commonwealth of Pennsylvania
Department of Transportation
Office of Chief Counsel
P.O. Box 8212
Harrisburg, PA 17105-8212

Tredyffrin Township
Chester County
c/o Mr. Joseph A. Janasik
Township Manager
1100 DuPortail Road
Berwyn, PA 19312



Eugene N. Cipriani,
Assistant Deputy Counsel
Attorney for Southeastern
Pennsylvania Transportation
Authority
1234 Market Street
Legal Department, 5th Floor
Philadelphia, PA 19107-3780

Date: December 12, 2001

COMMONWEALTH OF PENNSYLVANIA

DATE: December 20, 2001

REP

SUBJECT: A-00117623

DOCKETED

DEC 20 2001

TO: Office of Special Assistants

FROM: James J. McNulty, Secretary *J.M.*

DOCUMENT
FOLDER

Southeastern Pennsylvania Transportation Authority

Attached is a copy of a Petition to Modify Secretarial Letter, filed by Southeastern Pennsylvania Transportation Authority in connection with the above docketed proceeding.

This matter is assigned to your Office for appropriate action.

Attachment

cc: TSL
TSR

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